



(Boxford Trails Association/Boxford Open Land Trust, Inc.)

7 Elm St, P.O. Box 95, Boxford, MA 01921

978-887-7031

Conservation Restriction Monitoring Report

1. Property name: Cedar Property Society CR
2. Location [street address]: Sheffield Road, Boxford, MA (access is thru a trail easement beside an unrestricted parcel belonging to 38 Sheffield Rd, Boxford.
3. Date of inspection: Friday, May 23, 2014
4. Size in acres: two acres

5. Current owners name: Rich and Ellen Zanewski

6. Did the owner of the property accompany you on the inspection? Yes, the son.
A letter was sent and a phone call made to arrange the date and time.

7. Describe the details of your inspection [where you walked, etc.]:

We met Ellen and her son on their driveway. Her son showed us the property by leading us to their mowed field, on the unrestricted area. The CR property begins in the woods after this mowed field. Thru the spring leaves, we could see neighboring houses on Partridge Lane and Inverness Circle.

We walked to and around the certified vernal pool and another vernal pool and to the edge of the high bluff that overlooks Inverness Circle. We saw four plus very large rocks – glacier erratic's. This walk would be spectacular when the leaves are gone, as the bluff and valley below could then be appreciated.

A person entering this CR property from Sheffield Road would go up the protected trail, left of # 38. This trail is on the left side of the unrestricted area which contains the mowed field. Access to the restricted, CR parcel is at the far end of the mowed field. Once in the woods, the property jogs right, then left, behind the

house at #38. The unrestricted area is .88 acres and the restricted, CR parcel is 2.0 acres.

8. Present use of restricted property: The family maintains the protected trail from Sheffield Road to the mowed field.

9. Note any possible violations of the terms of the conservation restriction [be as specific as possible]: no violations were seen.

Monitor comments/Intended Follow-up, if any The certified vernal pool is jointly owned. Property boundaries are needed around this vernal pool and the owner's name or address of the other owner. A portion of this vernal pool as well as a second smaller vernal pool is owned by the protected, CR property. Walking around this vernal pool, we saw a wire fence (possible for keeping llamas by the former other owner,) small piles of sticks, a trail sign on a tree, and a red tape, possible denoting the property boundary.

11. Present use of abutting properties [including the owner's unrestricted lands]: All abutting properties are privately owned and residential.

12. Describe any rare or unusual plant or animal life or sign thereof: Identified a number of small, maple-leaf viburnum shrubs, jack-in-the-pulpit flowers, a buttercup plant, and common polypody "Rock Cap Fern" growing on rocks.

13. Additional remarks [particularly as to the present condition of the property]: Monitoring best done in the fall or winter when the leaves are gone.

14. Names of monitoring team members: Judy Gore and Nancy Merrill (NNM)

15. Time spent on property: one hour

16. Inspection team leader: Judy Gore, sent by email
NNM wrote report

Nancy A. Merrill

CURRENT CONDITIONS REPORTS ON CONSERVATION RESTRICTIONS

HELD BY BTA/BOLT Inc.

1. Written description of property ✓
2. Date CR recorded ✓
3. Map ✓
4. Photographs/ GPS
5. Dated CR Monitoring Report filled out ✓
6. Signature of owner, dated *none*
7. Did original Grantor receive a tax deduction? *no*
8. *Photo stations map* ✓
9. *2007 monitoring report* ✓

Where Baseline Documentation is unavailable

Approved 2/14/08 by BTA/BOLT, Inc BOARD

BTA/BOLT, Inc. intends to submit "current conditions" reports on CRs that we hold where we lack baseline Documentation by July 1, 2008

Achenbach
 Boxford Town Forest
 Cedar Pond Society ✓
 Coolidge 100 Acres
 Price property

CURRENT CONDITIONS (post acquisition Baseline Documentation)

FOR

Conservation Restriction on property owned by Cedar Pond Society

38 Sheffield Road, Boxford, MA

Recorded 7/26/00

2 acres

Owner: Rich and Ellen Zanevski

These 2 acres include a wetland and a Vernal Pool certified by the Boxford Conservation Commission 5/00 as well as a forested upland representing a diversity of flora and fauna. It is also in close proximity to one of the Town of Boxford's primary conservation areas, known as Wildcat, walked by many townspeople. This area, known as Cedar Pond may be used for passive recreation and may be minimally maintained by the Grantee, BTA/BOLT, Inc., merely to insure the preservation of the vernal pool, wetlands and environs.

CONSERVATION RESTRICTION HELD BY BTA/BOLT, Inc.

CEDAR POND SOCIETY

RECORDED 7/26/00

The primary purpose of this Conservation Restriction is to protect the certified vernal pool, the wetland that surrounds it and the rock outcroppings surrounding all of this. It is a mixed woodland approached through a meadow. Small, but precious.

**BTA/BOLT Inc. CONSERVATION RESTRICTION
INSPECTION REPORT**

1. Property name:

Cedar Pond Society CR

2. Location [street address]:

Sheffield Road, Boxford MA (adjacent to 38 Sheffield Rd)

3. Date of inspection: **7/12/07**

4. Size in acres: **2 acres**

5. Date conservation restriction recorded [month/year]: **7/26/00**

6. Grantor name: **The Cedar Pond Society**

7. Grantor address: **Olde Farms Road, Boxford, MA**

8. Owner name [if different from grantor]: **Rich and Ellen Zanewski**

9. Owner address: **38 Sheffield Road, Boxford, MA**

10. Length of present ownership [years, months]: **7 years, 4 months (CR was a condition of the sale)** date of purchase?

11. Did the owner of the property accompany you on the inspection?

Identify how notice of visit was given or permission obtained.

Enclose letter, if sent:

No, owner did not accompany. A telephone call was made and permission granted.

12. Describe the details of your inspection [where you walked, etc.]:

We started up the path at the roadway entrance. The path opens to a large field which is kept mown by the Zanewski family. There is a rock outcropping and a vernal pool also located on the property. We walked the perimeter and took photos.

Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT) hereby accepts this Conservation Restriction and agrees to be bound by its terms.

Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT)

By: Judy Gore
Judy Gore, President
By: George Horner
George Horner, Treasurer

hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss

June 8, 2000

Then personally appeared before me the above-named
acknowledged the foregoing to be their free act and deed.

George Horner And Judy Gore

Patricia Shultz
Notary Public
My Commission Expires:

My Commission Expires
October 20, 2006

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on 7/11/00, 2000, the Selectmen voted to approve the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT) for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 184, Section 32.

Duke Brown, Chairman

Robert Was

Neil Olansky

Robert Clewell

Charles Costello

APPROVAL BY THE SECRETARY

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT) has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32. Said approval is not to be construed as representing the existence or non-existence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not to be affected by the granting of this Conservation Restriction.

Date:

7/11/00



Bob Durand, Secretary, Executive Office of
Environmental Affairs

Boxford Conservation Commission
200 Washington Street
Boxford, MA 01921
July 19, 2000

NH&ESP
Vernal Pool Certification
MA Division of Fisheries & Wildlife
Route 135
Westboro, MA 01581

RE: Certification of Vernal Pool, Cedar Pond Society, Inc. Property, Map 24, Block 1,
Parcel A-2, Boxford, MA

Dear MNH&ESP:

Enclosed are the required documents for certification of a vernal pool in Boxford,
Massachusetts. Previously, I have submitted evidence to certify eight vernal pools in
Boxford.

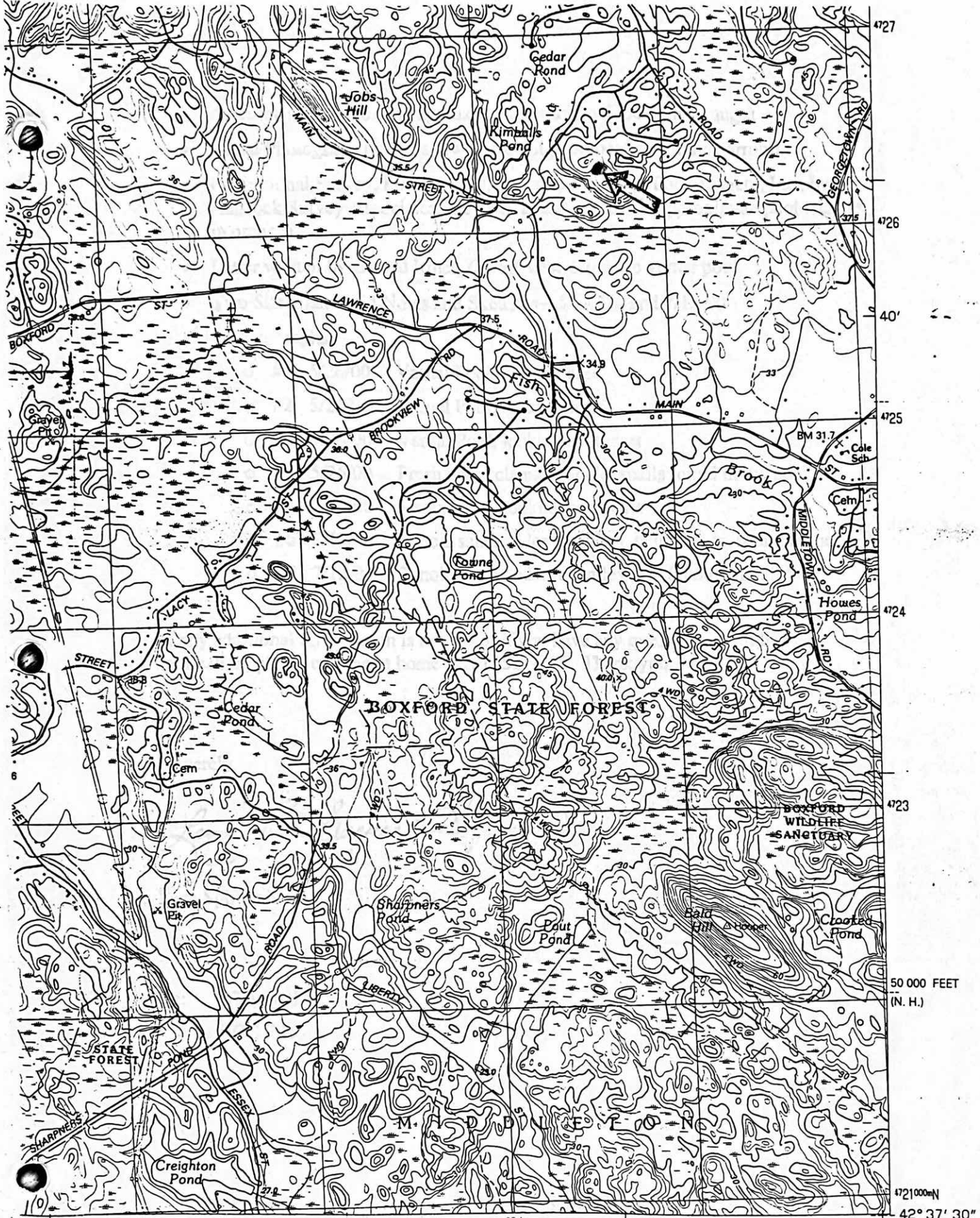
This beautiful, classic vernal pool is located on an approximately 3-acre wooded parcel
that presently is owned by the Cedar Pond Society. The parcel is in the process of being
placed under a Conservation Restriction to be held by Boxford Trails
Association/Boxford Open Land Trust (BTA/BOLT). This property has a great variety
of vegetation and varied topography; the vernal pool adds greatly to the habitat value of
the parcel. I believe this is the most active vernal pool I have seen – it has been very
exciting to explore it and discover its many, many life forms.

Jerry Irmer, with members of the Cedar Pond Society, was the first member of the
Boxford Conservation Commission to observe this vernal pool on April 21, 1999 (see
enclosed letter dated 6/1/99). Shortly after that, on April 24, 1999, Jerry, along with Nat
Coolidge (Commission Member), Matt Arey (Associate Member) and Jean Irmer
(Commission Secretary) observed numerous mole salamander egg masses in the pool.
Unfortunately, photographs taken at that time of the egg masses have been misplaced. In
order to certify the vernal pool, I was asked to observe it this spring and summer. It has
been a delightful experience!

It is interesting that this pool is shown on the 1966 USGS map, but not on the 1987
USGS map (I approximated its location).

Enclosed are the following supporting documents:

- Vernal Pool Field Observation Form
- 1966 USGS Map showing vernal pool location (orange, with yellow arrow)
- 1987 USGS Map showing approximate vernal pool location (orange, with yellow
arrow)



LAWRENCE, MASSACHUSETTS-NEW HAMPSHIRE
USGS MAP - 1987
CEDAR POND SOCIETY VERNAL POOL
42071-F1-TM-025
1987

- ROXBOROUGH CONSERVATION COMMISSION
SITE WALK/FIELD NOTES
- Assessor's Map showing approximate vernal pool location (orange)
 - Aerial Photograph (copy) showing vernal pool location (orange arrow)
 - Professional Survey, Plan of Land, prepared for Cedar Pond Society, Inc., by Hancock Survey Associates, Inc., November 23, 1999 (approximate pool location in orange)
 - Letter written by Gerard Irmer, 6/1/99, describing the vernal pool.
 - Two Site Visit Field Notes and Sketches – 5/26/00, and 7/12/00
 - 7 Photographs:
 - #1 5/26/00 Vernal Pool, looking east
 - #2 5/26/00 Vernal Pool, looking south
 - #3 5/26/00 Vernal Pool, looking southeast
 - #4 5/26/00 Fresh water clams, tadpole, snails found in the pool
 - #5 7/12/00 Vernal Pool, looking southeast
 - #6 7/12/00 3 mole salamander juveniles, tadpole, etc. found in the pool
 - #7 7/12/00 3 mole salamander juveniles, etc. (another photo)

If any additional information is needed or if you have any questions about this application, please call me at home (978) 352-9935. Thank you.

Sincerely,

Lana R. Sequin Spillman

Lana Spillman

Cc: BTA/BOLT
BCC File

BOXFORD CONSERVATION COMMISSION
SITE WALK/FIELD NOTES

OBSERVATION DATE: 5/26/00 TIME: 12:20 P.M.

DEP FILE NO. 114- N/A RDA NO. N/A

LOCATION: AREA OF CR - Vernal Pool - Off Sheffield Road
CEDAR POND SOCIETY

MEMBERS PRESENT: SPILLMAN

APPLICANT OR REP. PRESENT: N/A

WEATHER CONDITIONS: clear, sunny, ~72°F

BVW FLAGS PRESENT?: N/A

COMMENTS: _____

SITE STAKED?: N/A

COMMENTS: _____

GENERAL COMMENTS: _____

large tadpole
Numerous invertebrates

daphnia

red mite

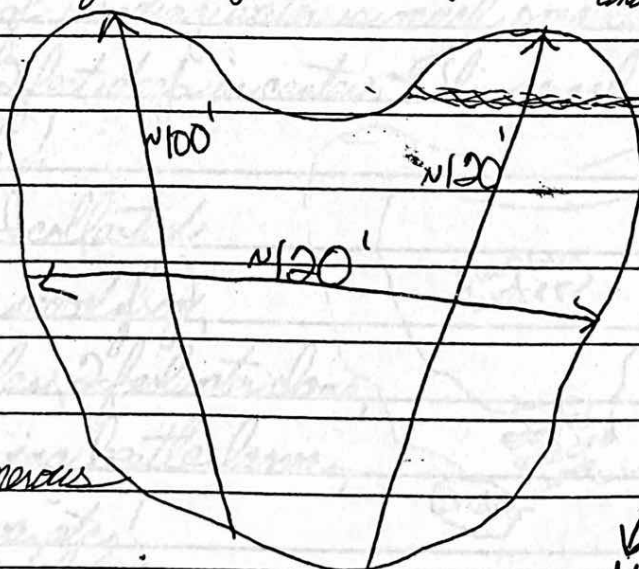
Freshwater snails

Freshwater clams - numerous

? ?

~ 1 inch

Beautiful large vernal pool with abundant and great variety of life forms!



Two separate adult frogs (kind?) jumped in the pool, the second after making a loud sound.

BOXFORD CONSERVATION COMMISSION
SITE WALK/FIELD NOTES

OBSERVATION DATE: 7/12/00 TIME: 9:45 A.M.

DEP FILE NO. 114- N/A RDA NO. N/A

LOCATION: VERNAL POOL - CEDAR POND SOCIETY, OFF SHEFFIELD ROAD

MEMBERS PRESENT: LANA SPILLMAN (and Erik Spillman)

APPLICANT OR REP. PRESENT: JUDY GORE

WEATHER CONDITIONS: Warm (~72°F), clear, sunny. Many mosquitos

BVW FLAGS PRESENT?: N/A

COMMENTS:

SITE STAKED?:

COMMENTS:

GENERAL COMMENTS: Area of standing water is much smaller than on 5/26, but still ~1 1/2 - 2 feet deep in center. This vernal pool is overflowing with life!

With 4 scoops of the net I collected

1 large tadpole (too big for vernal frog),

3 mole salamanders, juveniles, 2 freshwater clams,

6 snails, 1 prodigious diving beetle larva,

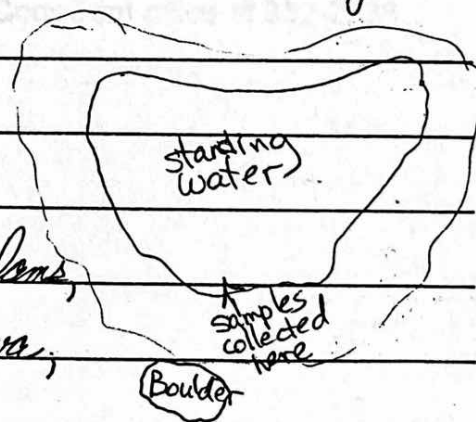
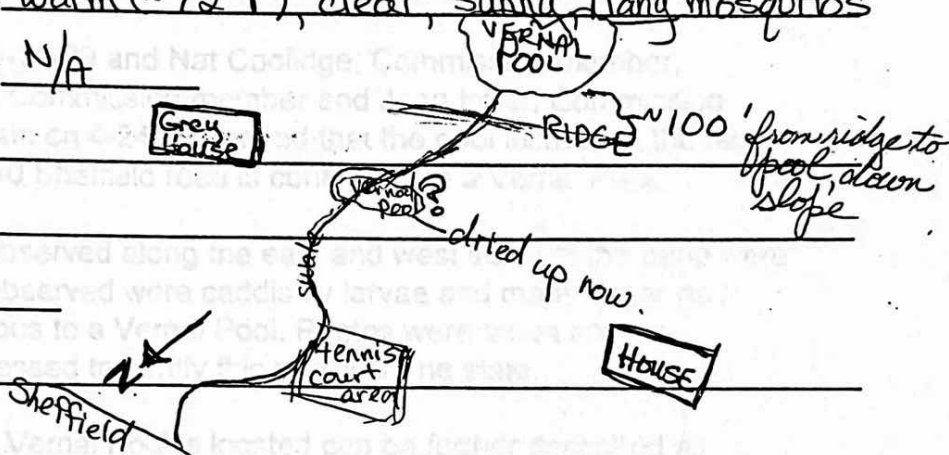
1 Chironomid midge larva, etc.!

Erik found 2 small Horned Larks hopping about 10 ft. from the vernal pool

Nikon Photos 111 11 closeups

Yastica Photos 111

1 of bad
4 of pool



Date: 6-1-99

To: Cedar Pond Society
c/o Peter Kastrinelis, Treasurer
6 Olde Farms Road
Boxford, MA 01921

From: Gerard Irmer, Chairman
Conservation Commission
200 Washington Street
Boxford, MA 01921

cc: File
M. Arey

Subject: Vernal Pool on Parcel A-2, next to 38/40 Sheffield Road

A site visit by myself on 4-21-99 and Nat Coolidge, Commission member, Matthew Arey, Associate Commission member and Jean Imer, Commission Secretary and myself again on 4-24-99 verified that the pool located at the rear of parcel A-2 next to 38/40 Sheffield road is confirmed as a Vernal Pool.

The many egg masses observed along the east and west sides of the pond were salamander eggs. Also observed were caddis fly larvae and many finger nail clams which are indigenous to a Vernal Pool. Photos were taken and an application is being processed to certify this pool with the state.

The parcel on which this Vernal Pool is located can be further described as parcel A-2 on a plan recorded with Essex South District Registry of Deeds in Plan Book 155, Plan 57 and conveyed to the current owner at Book 6960, Page 555.

Any questions regarding this matter please call the ConsCom office at 352-2538.

Regards,

Jerry

concom235



Natural Heritage & Endangered Species Program Massachusetts Division of Fisheries and Wildlife Vernal Pool Field Observation Form

(7/99)

(For use with Guidelines for Certification of Vernal Pool Habitat)

For office use only.

Pool location

Town Boxford County EssexUSGS Quadrangle name SOUTH GROVELAND, 1966 ☐ SERIES 7.5' X 7.5'
LAWRENCE, 1987 ☒ SERIES 7.5' X 15'

WRITTEN DIRECTIONS TO POOL: from next to 38/40 Sheffield Rd., walk south on the path - up the hill (path ends), to the left of the flat "tennis court" area, up a swale in the woods, around a small depression (small vernal pool?) where a grey house is visible to the left, over the ridge, and down about 100 feet to the vernal pool. See sketch on 7/12/00 Field Notes.

THIS INFORMATION
MUST BE SUBMITTED

(USE ADDITIONAL PAGES, IF NECESSARY.)

Instructions

FOR COMPLETE INFORMATION ABOUT CERTIFICATION, REFER TO GUIDELINES FOR CERTIFICATION OF VERNAL POOL HABITAT.

PROVIDE ALL OF THE INFORMATION REQUESTED IN BOXES 1-6. IF MORE SPACE IS REQUIRED, ATTACH ADDITIONAL PAGES. INCLUDE ALL REQUIRED PHOTOGRAPHS AND DOCUMENTATION. SIGN THE FORM IN THE AREA PROVIDED ON THE REVERSE SIDE. INCOMPLETE OR UNSIGNED SUBMISSIONS WILL BE RETURNED.

THE FOLLOWING INSTRUCTIONS REFER TO EACH OF THE NUMBERED BOXES.

1. THE 7.5 X 7.5 SERIES HAS THE LEGEND "7.5 MINUTE SERIES" IN THE UPPER RIGHT HAND CORNER ALONG WITH THE QUADRANGLE NAME. THE 7.5 X 15 MINUTE SERIES IS SO LABELED IN THE UPPER RIGHT HAND CORNER AND HAS THE QUADRANGLE NAME IN THE LOWER RIGHT CORNER.

WRITTEN DIRECTIONS MUST BE INCLUDED.

2. INDICATE THE FIRST AND LAST DATES THAT THE POOL OR ITS BIOLOGICAL COMPONENTS WERE OBSERVED.

3. PART A AND B ARE FOR CERTIFICATION BY OBLIGATE SPECIES. PART C IS EITHER FOR ADDITIONAL INFORMATION (APPRECIATED) OR FOR CERTIFICATION BY THE FACULTATIVE SPECIES. IF CERTIFYING BY OBLIGATE SPECIES, PROVIDE A PHOTOGRAPH OF THE POOL HOLDING WATER AND AT LEAST ONE PHOTOGRAPH (OR AUDIO TAPE FOR CHORUSING) OF BREEDING ACTIVITY.

FOR CERTIFICATION BY FACULTATIVE SPECIES, PROVIDE PHOTOGRAPHS OF THE POOL HOLDING WATER AND PHOTOGRAPHS (OR TAPES) OF THE FACULTATIVE SPECIES AS REQUIRED. ADDITIONALLY, PROVIDE A PHOTOGRAPH OF THE POOL WHEN DRY OR OTHERWISE PROVE THAT IT HAS NO FISH.

2. Observation dates

I first observed 5/26/00 First date pool/species observed 4/21/99
Last date pool observed 7/12/00 Last date species observed 7/12/00

3 A. Evidence: obligate amphibians

Indicate date of observation.

* = RARE SPECIES	COURTING ADULTS	SPERMATOPHORES	EGG MASSES (2+)	SALAMANDER LARVAE	TRANSFORMING JUVENILES
SPOTTED SALAMANDER					
* BLUE-SPOTTED SALAMANDER					
JEFFERSON SALAMANDER					
* MARBLED SALAMANDER					
UNIDENTIFIED MOLE SALAMANDER					
			<u>4/24/99</u>		<u>7/12/00</u>
	BREEDING CHORUS	MATED PAIRS	EGG MASSES (2+)	FROG - TADPOLES	TRANSFORMING JUVENILES
WOOD FROG					<u>7/12/00</u>
* SPADEFOOT TOAD					

3 B. Evidence: fairy shrimp

DATE OBSERVED _____

3 C. Evidence: facultative organisms

Indicate date of observation.

* = RARE SPECIES	DATE OBSERVED	ACTIVITY OBSERVED		DATE OBSERVED	ACTIVITY OBSERVED
BREEDING SPRING PEEPERS			PAINTED TURTLES		
BREEDING GRAY TREEFROGS			SNAPPING TURTLES		
BREEDING GREEN FROGS			PREDACEOUS DIVING BEETLE LARVAE	<u>7/12/00</u>	
BREEDING LEOPARD FROGS			WATER SCORPIONS		
BREEDING PICKERAL FROGS			DRAGONFLY NYMPHS		
BREEDING AMERICAN TOADS			DAMSELFLY NYMPHS		
BREEDING FOWLER'S TOADS			DOBSONFLY LARVAE		
* BREEDING FOUR-TOED SALAMANDERS			WHIRLIGIG BEETLE LARVAE		
RED-SPOTTED NEWT (ADULTS)			CADDISFLY LARVAE	<u>4/24/99</u>	
* SPOTTED TURTLES			LEECHES		
* WOOD TURTLES			FINGERNAIL (FRESHWATER) CLAMS	<u>4/24/99</u>	
* BLANDINGS TURTLES			AMPHIBIOUS AIR-BREATHING SNAILS	<u>5/26/00 and 7/12/00</u>	

red mite

5/26/00

#1

May 26, 2000

Cedar Point Society
Vernal Pool
off Sheffield Road, Boylston

Looking east from next to fence.

Photo by Lana Spellman

①

#3

May 26, 2000

Cedar Point Society
Vernal Pool
off Sheffield Road, Boylston

Looking southeast

note boulder in foreground

Photo by Lana Spellman

③

#2

May 26, 2000

Cedar Point Society
Vernal Pool
off Sheffield Road, Boylston
Looking south (toward fence)

Photo by Lana Spellman

②

7/12/00

#5

Cedar Pond Society, Vernal Pool
off Sheffield Road, Boylston

Looking southeast

note boulders in foreground

Photo by Lana Spillman

(Y)

#4

May 26, 2000

Cedar Pond Society
Vernal Pool
off Sheffield Road, Boylston
tadpole
fresh water clams
snails
etc.

Photo by Lana Spillman

(N)

#6

July 12, 2000

Cedar Pond Society
Vernal Pool
off Sheffield Road, Boylston

3 small salamander juveniles

1 frog tadpole

2 clams

6 snails

Chironomid pupae larvae

Potamogeton diving beetle larvae

etc.

Photo by Lana Spillman

(N)

(P)

6. ADULT INC. CONSERVATION ALLOCATION
INSPECTION REPORT

1. Property name:

Cedar Point Farm

2. Location (street address)

1400 Old Road

#7

July 12, 2000

3. Date of inspection: 7/12/00

4. Size in acres:

Cedar Point Society

5. Date conservation easement was established:

Varial Pool

off Sheffield Road, Bedford

6. Greater area:

3 mole salamanders juveniles,

frog tadpoles

7. Greater area:

clams,

snails,

8. Greater area:

Chironomid midge larva

predaceous diving beetle larva

9. Greater area:

etc.

10. Length of current ownership (years, months): 7 years, 4 months (CR was a condition of the sale)

11. Did the owner of the property:

Photo by Lana Spillman

Identify how notice of visit was given or permission obtained:

By phone letter 11/00

No owner or their accompany. A telephone call was made and (N) (B) was provided.

12. Describe the details of your inspection (where you walked, etc.):

We started up the path, at the roadway entrance. The path opens to a large field which is kept mowed by the Bannister family. There is a rock outcropping and a vernal pool also located on the property. We walked the perimeter and took photos.

**BTA/BOLT Inc. CONSERVATION RESTRICTION
INSPECTION REPORT**

1. Property name:
Cedar Pond Society CR
2. Location [street address]:
Sheffield Road, Boxford MA (adjacent to 38 Sheffield Rd)
3. Date of inspection: *7/12/07*
4. Size in acres:
5. Date conservation restriction recorded [month/year]: *7/26/00*
6. Grantor name: *The Cedar Pond Society*
7. Grantor address: *Olde Farms Road, Boxford, MA*
8. Owner name [if different from grantor]: *Rich and Ellen Zanewski*
9. Owner address: *38 Sheffield Road*
10. Length of present ownership [years, months]: *7 years, 4 months (CR was a condition of the sale)*
11. Did the owner of the property accompany you on the inspection?
Identify how notice of visit was given or permission obtained.
Enclose letter, if sent:

No, owner did not accompany. A telephone call was made and permission granted.
12. Describe the details of your inspection [where you walked, etc.]:

We started up the path at the roadway entrance. The path opens to a large field which is kept mown by the Zanewski family. There is a rock outcropping and a vernal pool also located on the property. We walked the perimeter and took photos.

13. Present use of restricted property

The family maintains the field as a mowed piece of property.

14. Note any possible violations of the terms of the conservation restriction [be as specific as possible]:

Monitor comments/Intended Follow-up

_____ None Noted _____

15. Present use of abutting properties [including the owner's unrestricted lands]:

All abutting properties are residential. This is a pork chop piece in a housing subdivision.

16. Describe any rare or unusual plant or animal life or sign thereof:

There is a certified vernal pool on the property. Finger clams and salamander have been identified there.

17. Additional remarks [particularly as to the present condition of the property]:

Property is in good condition.

18. Names of monitoring team members:

Mary Ellen Iorio; Nick Shrewsbury

19. Time spent on property:

30 minutes

20. Inspection team leader:

_____ Mary Ellen Iorio _____

[printed name]

_____ Mary Ellen Iorio (via email) _____

[signature]

PLAN

QUITCLAIM DEED

CEDAR POND SOCIETY, INC., of Boxford, Essex County, Massachusetts,
a non-profit corporation organized under the provisions of G.L. c. 180,

for consideration paid, and in full consideration of
-----Twelve Thousand Five Hundred-----(\$12,500.00) dollars

grant to RICHARD L. ZANIEWSKI and ELLEN M. ZANIEWSKI, husband and wife,
as tenants by the entirety, both of said Boxford

with quitclaim covenants

the land in Boxford, Essex County, Massachusetts, consisting of
2.902¹ acres, shown as Parcel A-2 on a plan entitled, "Plan of Land in
Boxford," dated July 22, 1979, Hancock Survey Associates, Inc., filed
with Essex South Registry of Deeds in Plan Book 155, Plan 57. Said
parcel is conveyed subject to easements and other matters of record,
if any, and to real estate taxes not yet due and payable.

A portion of the land conveyed is subject to a Conservation
Restriction to Boxford Trails Association/Boxford Open Land Trust
(BTA/BOLT) to be recorded herewith, as shown on "Plan of Land in
Boxford, MA, prepared for Cedar Pond Society, Inc., dated November 23,
1999, by Hancock Survey Associates, Inc., to be recorded herewith.

The portion of the land marked "Unrestricted Area" on said Plan
(0.8869¹) is not subject to the aforementioned Conservation
Restriction recorded herewith.

We certify that written notice, as prescribed by G.L. c. 180, § 8A,
8A, was mailed, postage prepaid, to the Office of the Attorney General
on May 4, 2000.

For our title see deed of Boxford Olde Farms Corporation recorded in
the Essex South District Registry of Deeds, Book 6960, Page 555.

IN WITNESS WHEREOF, the said Cedar Pond Society, Inc. has caused its
corporate seal to be hereto affixed and these presents to be signed,
acknowledged and delivered in its name and behalf by Allan Miller,
President, and Peter Kastrielis, Treasurer, hereto duly authorized,
this 25th day of July 2000.

CEDAR POND SOCIETY, INC.

by:

Allan Miller, President

Peter Kastrielis, Treasurer

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

July 25 2000

Then personally appeared the above named Allan Miller and Peter
Kastrielis, President and Treasurer as aforesaid, and acknowledged the
foregoing instrument to be the free act and deed of the Cedar Pond
Society, Inc., before me

SCUTIERE
BOX 23

Notary Public
My Commission expires:

DONALD J. SCUTIERE
NOTARY PUBLIC
My Commission Expires Sept. 8, 2006

SALES 10
DEEDS 10
ESSEX SOUTH
C7/25/00 10:58AM : 01
000000 #744
FEE \$57.00
COST \$57.00
CANCELLED

40 Sheffield Rd., Boxford, MA 01921
Lot A-2 Sheffield Rd., Boxford, MA

Grantees' Address:
Property Locus:

CONSERVATION RESTRICTION & ACCESS EASEMENT

The undersigned, Cedar Pond Society, Inc., with corporate office at 6 Olde Farms Road, Boxford, Essex County, Massachusetts, established under an Article of Incorporation dated June 11, 1969, and recorded with the Secretary of State, Corporations Division, Commonwealth of Massachusetts, for nominal consideration, hereby grants, with quitclaim covenants, to Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT), a Massachusetts not for profit corporation having its principal office at 7 Elm Street, Boxford, Essex County, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the land located in Boxford, Essex County, Massachusetts shown as "Conservation Restriction" on a plan entitled "Plan of Land in Boxford, MA", designed for the Cedar Pond Society, Boxford, Massachusetts, dated November 23, 1999, by Hancock Survey Associates, Inc. and recorded as Plan _____, in Plan Book _____ in the Essex South District Registry of Deeds and incorporate herein by reference (the "Premises"). Said Cedar Pond Society, Inc., and its successors in title to the Premises are hereinafter called the "Grantor" and Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT), and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed of Boxford Olde Farms Corporation in said Deeds in Book 155, Page 57, and conveyed to current owner in Book 6960, Page 555.

Whereas, the Premises provides significant scenic, aesthetic, scientific and educational value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses; and

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a distinctive Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural and open space values of the Premises for this generation and future generations; and

Whereas, the Premises include a wetland and vernal pool in the process of being certified, and protection of such resources are referenced in the 1994 Boxford Open Space and Recreation Plan; and the 1996 Boxford Master Plan; and

Whereas, the Premises contains and consists of forested upland, representing a diversity of wildlife habitat; and

Whereas, the Premises is in close proximity to The Town of Boxford's primary conservation area, known as "Wildcat", which is used by the general public for passive recreational and educational activities; and

Whereas, said Open Space and Recreation Plan identifies Conservation Restrictions as one of the techniques to help implement Boxford's open space goals.

Therefore, in order to preserve the Premises in perpetuity in its present natural scenic and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within

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Conservation Restriction.

2. Reserved Rights. All acts and uses not prohibited in paragraph 1 are permissible. Notwithstanding the provisions of paragraph 1, the following acts and uses are also permitted, but only if such uses and activities do not materially impair the purposes of this Conservation Restriction and other significant conservation interests:

- (a) Within forested areas, in accordance with generally accepted forest management practices, (i) selective pruning and cutting to prevent, control or remove hazards, disease or insect damage, fire, or to maintain trails; and (ii) except for the area within 200 feet of the vernal pool, the cutting of trees for any purpose, including selective commercial timber production, in accordance with a plan, prepared by a professional forester and approved by the Grantee, that is designed to protect the conservation values of the Premises, including without limitation wildlife habitat values;
- (b) Activities designed to enhance the ecological or natural historical value of the Premises or to enhance the awareness of such values, including but not limited to the creation of footpaths, boardwalks and the placing of informative signs and benches as permitted by the Grantor;
- (c) Hiking, wildlife observation, cross-country skiing, horseback riding and other passive outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction;
- (d) Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this paragraph 2 shall be in compliance with the then-current Zoning By-Law applicable to the Premises, the Wetlands Protection Act (General Laws Chapter 131, Section 40), the Rivers Protection Act, the Boxford Wetlands Protection By-Law, and all other applicable federal, state and local law.

The inclusion of any reserved right in this paragraph 2 requiring a permit from a public agency does not imply that the Grantee takes any position on whether such permit should be issued.

3. Affirmative Covenants of the Grantor. The Grantor shall pay before delinquency all taxes, assessments, fees and charges levied on or assessed against the Premises by competent authority (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of payment upon request.

4. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises

following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, performing scientific study, determining compliance with the terms of this Conservation Restriction and preventing, abating, or remedying any violations thereof. The Grantee shall have the right, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Premises. For the purpose of accessing the Premises to engage in any of the activities described in this paragraph, the Grantee, through its duly designated officers, directors, members, employees, representatives or agents, shall have the right following reasonable notice and at reasonable times and in a reasonable manner, to pass and repass on foot across land shown as "Unrestricted Area" on the plan entitled "Plan of Land in Boxford, dated November 23, 1999 by Hancock Survey Associates, Inc." and recorded on Plan ~~_____~~ ^{herein} Plan Book _____, in the Essex South District Registry of Deeds, and incorporated herein by reference.

5. Use by Others. The Grantor recognizes that certain portions of the Premises are presently used by other persons to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. Grantor hereby agrees to the continuance of such activities provided (a) that any such activity shall be limited to daylight hours only; (b) that no motor vehicles of any kind shall be permitted; (c) that no camping, hunting, trapping or discharge of firearms shall be conducted; (d) that no activity of a commercial nature be allowed. To the extent permitted by law, the Grantor and Grantee hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the same. Pursuant to M.G.L. c.21, s. 17c, the Grantor is not liable to any member of the public who uses the Premises for injuries to person or property sustained by such person while on the Premises in the absence of willful, wanton, or reckless conduct by the Grantor.

6. Legal Remedies of the Grantee. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of the court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

Judy,

The following are my thoughts on the draft Cedar Pond Society CR:

1. The phrase "or expressly permitted by the Grantee in writing" that is contained in numbered paragraph 1 on page 2 is of some concern. Inclusion of this phrase serves to give the Grantee limitless discretion to waive the limitations on use of the land imposed by the CR. Not knowing who may be making decisions for BTA/BOLT (or its successor) twenty or thirty years from now, that is a risky phrase to include. While the Grantee should be given some discretion with respect to enforcement, I would think that numbered paragraph 2(d) on page 4 serves to give the Grantee sufficient discretion (in this section, however, some limitations are placed on the exercise of that discretion). I would delete this language in paragraph 1 on page 2.
2. The wording of paragraph 1(g) is somewhat rough and does not add anything to the CR. I would replace it with the following: "Any activity which impairs the natural and open condition of the premises." It seems somewhat awkward to address the permitted activities of forestry and passive recreation in the "Prohibited Activities" section, particularly where these activities are addressed in the "Permitted Activities" section.
3. Typically, the president and treasurer of corporations execute contracts for land on behalf of corporations. The signature lines of Cedar Pond Society and BTA/BOLT should probably be adjusted to accommodate the signatures of both the president and treasurer of the respective corporations. If for some reason it is the desire of Cedar Pond Society that its president not execute the CR, then you would want the corporation's clerk to certify in writing (to be recorded) that the treasurer has authority to execute the CR.
4. If it is the affirmative desire of Cedar Pond Society and BTA/BOLT to ensure that the premises are kept open to the public in perpetuity, then I would suggest stronger language in the "Use by Others" section on page 5. While the language used is probably adequate to create a public easement, it would be my preference, if this were an important issue to anyone, to use stronger language that leaves no doubt as to the intent. Given the location of the premises, however, this may not be a particularly important issue.

Let me know if you have any questions.

Angela

5. Angela asks why the front section is not being restricted?

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